

Court No. - 6

Case :- CONTEMPT APPLICATION (CIVIL) No. - 4476 of 2023

Applicant :- Apex Dream Homes Pvt. Ltd.

Opposite Party :- Mrs Chaitra V, Managing Director,
Pashchimanchal Vidyut Vitran Nigam And 4 Others

Counsel for Applicant :- Vaibhav Kaushik

Hon'ble Piyush Agrawal,J.

List on 5.6.2023, as fresh.

Order Date :- 31.5.2023

Pravesh Mishra

Court No. - 71

Case :- CONTEMPT APPLICATION (CIVIL) No. - 4476 of 2023

Applicant :- Apex Dream Homes Pvt. Ltd.

Opposite Party :- Mrs Chaitra V, Managing Director,
Pashchimanchal Vidyut Vitran Nigam And 4 Others

Counsel for Applicant :- Vaibhav Kaushik

Hon'ble Dr. Yogendra Kumar Srivastava, J.

Sri Vaibhav Kushik, learned counsel for the applicant after making submissions to some extent seeks time to complete his instructions and get ready with the matter.

As prayed, list on 14.06.2023 as fresh.

Order Date :- 5.6.2023

Arun K. Singh

[Dr. Y.K. Srivastava, J.]

Court No. - 72

Case :- CONTEMPT APPLICATION (CIVIL) No. - 4476 of 2023

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**Opposite Party :- Mrs Chaitra V, Managing Director,
Pashchimanchal Vidyut Vitran Nigam And 4 Others**

Counsel for Applicant :- Vaibhav Kaushik

Hon'ble Kshitij Shailendra,J.

1. Two supplementary affidavits filed in Court today are taken on record.

2. Heard Shri Anoop Trivedi, learned Senior Counsel assisted by Shri Vaibhav Kaushik, learned counsel for the applicant.

3. There was a controversy with regard to installation of multi-point connection and single-point connection. The applicant being a developer, who has constructed various residential flats possession whereof has been delivered to the purchasers, filed a Writ-C No.17587 of 2023 (Apex Dream Homes Pvt.Ltd. vs. Managing Director Pashchimanchal Vidyut Vitran Nigam Ltd. and 2 others), in which following interim order was passed on 23.5.2023:

"1. On oral request of Sri Anoop Trivedi, learned Senior Advocate assisted by Sri Vaibhav Kaushik, learned counsel for the petitioner, State of U.P. through "Additional Chief Secretary (Energy)", Government of U.P., Lucknow, is allowed to be impleaded as respondent no. 4. Necessary correction in the array of parties be carried out during the course of the day.

2. Notice on behalf of respondent no. 4 has been accepted by Sri Rajiv Gupta, learned Additional Chief Standing Counsel, in Court.

3. The petitioner is the builder which built 618 flats which have been sold but the sale deeds are in process of execution and although a resident society, namely "Apex Athena Welfare Society" (registered), has been constituted but the interest of the residents are being persuaded by the petitioner herein for the reason that the maintenance etc., has not yet been handed over to the society by the builder.

4. Grievance of the residents of the society is that more than 51 percent of the residents /flat-owners of the society wants single-point connection but the respondents are arbitrarily and illegally attempting to replace the single-point connection into a multi-point connection. The residents has raised their grievances which presently is being persuaded by the petitioner.

5. In these circumstances the petitioner had earlier filed Writ C No. 13354 of 2023 (M/S Apex Dream Homes Private Limited) which was disposed of by order dated 21.04.2023 with a direction to the Electricity Consumer Grievance Redressal Forum, Meerut, to decide the application of the petitioner for interim relief in Complaint Case No. 13 of 2023 within three weeks. According to the petitioner, the Quorum of the aforesaid Forum is not complete and as such the Forum is non-functional which compelled the petitioner to file the present writ petition seeking the following relief:

"A. Issue a writ, order or direction in the nature of mandamus, against the respondents, refraining them from commencing or installing or make any further changes in electricity infrastructure in connection with implementation of multi-point meter installation in the petitioner building premises as neither the Electricity Consumers Grievance Redressal Forum, Meerut quorum is complete for proper adjudication of interim prayer filed by petitioner nor the respondent no. 1 to 3 has ever accepted the petitioner's 51% consent as per UP Electricity Regulatory Commission's Order dated 08.05.2020 as well as the Electricity Supply Code, 2005, wherein the consent of residents shall be obtained for the above activity to stand remain on single-point connection or to migrate to multipoint connection as prescribed.

B. Issue a writ, order or direction in the nature of Mandamus, Commanding the respondents to refrain from initiating the process of the multi-connection prior to mandatory Electricity Infrastructural Audit within the campus of the Petitioner Society through a licensee agency or any other authorized third-party agency having professional competency.

C. Issue a writ, order or direction in the nature of Mandamus, Commanding the respondents to first decide the representation dated 28.2.2023 and email dated 14.3.2023 within the stipulated period before initiating any process of multi-point connection.

D. In addition to or in substitution above, to grant such other and further relief in favour of the petitioner society, which this Hon'ble Court may deem just and proper in the interest of justice.

E. To award the Cost."

6. Sri Abhishek Srivastava, learned counsel for respondent no. 2, has placed before us instructions of the respondent no. 2 dated 22.05.2023 and perusal of paragraph no. 5 of the instruction leaves no manner of doubt that despite best persuasion of the respondent no. 2, only 222 flat owners/residents have agreed for multi-point connection as against the total number of 618 residents/flat-owners. Thus, it is evident on record that the majority of the flats owners do not want multi-point connection, rather they want a single-point connection.

7. There is no provision which has been brought to our notice that empowers the respondent no. 2 to compel a society or residents to replace a single-point connection by a multi-connection.

8. Learned counsel for respondent no. 2 submits that in the event 51 percent or more of the flat owners want multi- point connection then multi-point connection shall be installed replacing the single-point connection.

9. We prima facie find that on facts of the present case, the submission of learned counsel for respondent no. 2 is completely misconceived inasmuch as in the present set of facts more than 51 percent of the residents/flat-owners want single-point connection.

10. In view of the aforesaid, let notice be issued to respondent no.3 returnable at any early date.

11. Steps be taken within a week by ordinary process as well as by registered post.

12. All the respondents shall file counter affidavit within four weeks.

13. Petitioner will have two weeks thereafter to file rejoinder affidavit.

14. List/put up in the additional cause list in the week commencing 17.07.2023 before the appropriate Bench.

15. Considering the facts and circumstances of the case, as an interim measure it is provided that the respondents shall not compel installation of multi-point

connection and instead the single-point connection shall be continued.

16. In the event, the respondents have taken any action for multiple point connection then they shall immediately restore the single point connection."

4. A perusal of the paragraphs No.15 and 16 shows that instead of installing multi-point connections, this Court clearly directed that single-point connection shall be continued. Further direction was issued that in the event respondents have taken any action for multiple-point connection then they shall immediately restore the single-point connection.

5. It is contended that the order of this Court was passed after hearing the State as well as learned counsel representing the Pashchimanchal Vidyut Vitran Nigam Ltd., Meerut and, further, by registered post as well as by electronic mode, copy of the order passed by this Court was duly served upon opposite parties, however, they have been failed to comply with the directions issued by this Court.

6. Specific averment has been made in the affidavit supporting the contempt application as well as in the supplementary affidavit filed before this Court that opposite parties are continuously installing multi-point meters instead of single-point meters. Necessary details and photographs have also been annexed along with the supplementary affidavit.

7. *Prima facie*, I find that a case for contempt is made out.

8. Issue notice to opposite parties No.2, 3 and 4.

9. Steps be taken immediately.

9. Put up as fresh on 6.7.2023.

8. Since, the only issue involved is installation of one kind of meter instead of other, let the opposite parties No.2, 3 and 4 appear in person before this Court on the next date fixed, i.e., 6.7.2023 to show cause as to why they may not be punished for committing willful and deliberate disobedience of the aforesaid order.

9. It is left open for the opposite parties to comply with the directions issued by this Court as quoted herein above and ensure immediate compliance in the meantime and file an affidavit of compliance to the aforesaid extent.

Order Date :- 14.6.2023/LN Tripathi

Court No. - 9

Case :- CONTEMPT APPLICATION (CIVIL) No. - 4476 of 2023

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Counsel for Applicant :- Vaibhav Kaushik

Hon'ble Rohit Ranjan Agarwal,J.

1. Rajeev Mohan, Chief Engineer, Noida, Shivam Tripathi, Executive Engineer, Electricity Urban Distribution Division-I, Noida and Hari Shanker, Managing Director, Radius Synergy Pvt. Ltd. are present in the Court who have been identified by their respective counsel Sri Abhishek Srivastava and Sri Saroj Kumar Yadav, Advocates.

2. A short counter affidavit has been filed by opposite party Nos.2 and 3, which is taken on record.

3. Sri Abhishek Srivastava, learned counsel appearing for Power Corporation submits that special leave petition against order dated 23.05.2023 has been preferred before Hon'ble Apex Court and the same is listed for today.

4. In view of the said fact, as the order of writ Court is engaging attention of Hon'ble Apex Court, the contempt proceedings are deferred for today.

5. List after two weeks i.e. on 20th July, 2023.

6. Personal appearance of opposite parties are exempted till then.

Order Date :- 6.7.2023

Kushal

Court No. - 9

Case :- CONTEMPT APPLICATION (CIVIL) No. - 4476 of 2023

Applicant :- Apex Dream Homes Pvt. Ltd.

Opposite Party :- Mrs Chaitra V, Managing Director, Pashchimanchal
Vidyut Vitran Nigam And 4 Others

Counsel for Applicant :- Vaibhav Kaushik

Counsel for Opposite Party :- Saroj Kumar Yadav

Hon'ble Rohit Ranjan Agarwal,J.

1. Learned counsel for the applicant states that the order of writ Court has been set aside by the Hon'ble Supreme Court as such no case for contempt is made out.
2. In view of the statement so made by counsel for the applicant the contempt application stands dismissed.
3. Contempt notice stands discharged.
4. Sri Saroj Kumar Yadav, Advocate is present for the opposite party.

Order Date :- 20.7.2023

Kushal